

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carlmais Johnson	Team: Squad #16	CCRB Case #: 201507428	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Wednesday, 08/26/2015 11:45 PM	Location of Incident: Crotona Park, 42nd Precinct stationhouse	18 Mo. SOL 2/26/2017	Precinct: 42
Date/Time CV Reported Thu, 08/27/2015 1:25 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 09/02/2015 1:08 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Richard Zimmer	10484	956082	042 PCT
2. POM Jonathan Baez	12619	955740	042 PCT
3. Officers			42 PCT
4. An officer			
5. POM John Nicolosi	09402	950949	042 PCT
6. SGT Jonathan Benintendo	295	927919	042 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Eduardo Perezromero	22325	940571	042 PCT
2. POM Xavier Larino	13312	950725	042 PCT
3. LT Sharisse Sanders	00000	931137	042 PCT
4. SGT Ivonne Mercado	960	940467	042 PCT
5. POM Peter Flintoft	26746	948337	042 PCT
6. SGT Cesar Imbert	02271	940281	042 PCT
7. POM Christophe Drews	19602	944519	042 PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Force: At Crotona Park in the Bronx, officers used physical force against § 87(2)(b)	A . Alleged Victim Uncooperative
B . POM Richard Zimmer	Force: At Crotona Park in the Bronx, Police Officer Richard Zimmer used physical force against § 87(2)(b)	B . Exonerated
C . POM John Nicolosi	Force: At Crotona Park in the Bronx, Police Officer John Nicolosi used physical force against § 87(2)(b)	C . Exonerated
D . POM Jonathan Baez	Force: At Crotona Park in the Bronx, Police Officer Jonathan Baez used physical force against § 87(2)(b)	D . Exonerated
E . SGT Jonathan Benintendo	Force: At Crotona Park in the Bronx, Sergeant Jonathan Benintendo used physical force against § 87(2)(b)	E . Exonerated
F . Officers	Force: At Crotona Park in the Bronx, officers used physical force against § 87(2)(b)	F . Officer(s) Unidentified
G . An officer	Force: At Crotona Park in the Bronx, an officer used physical force against § 87(2)(b)	G . Officer(s) Unidentified

Officer(s)	Allegation	Investigator Recommendation
H . POM Richard Zimmer	Force: At the 42nd Precinct stationhouse, Police Officer Richard Zimmer hit § 87(2)(b) against a wall.	H . Unsubstantiated
I . Officers	Abuse: At the 42nd Precinct stationhouse, officers did not obtain medical treatment for § 87(2)(b)	I . Unfounded
J . An officer	Abuse: At the 42nd Precinct stationhouse, an officer threatened to arrest § 87(2)(b)	J . Alleged Victim Uncooperative

Case Summary

On August 26, 2015, § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) were inside of Crotona Park at 11:45 p.m. at picnic tables near the tennis courts. § 87(2)(b) had stepped away from the picnic tables to bring her younger children to the bathroom. PO Richard Zimmer and PO Jonathan Baez, of the 42nd Precinct, were patrolling Crotona Park and observed a group of individuals in the park after dark with beers, two summonsable offenses. PO Zimmer and PO Baez approached § 87(2)(b) and § 87(2)(b) who were both holding beers, and requested to see their identification. § 87(2)(b) and § 87(2)(b) refused to give PO Zimmer and PO Baez their identification and tried to walk past them. Because § 87(2)(b) and § 87(2)(b) were resistant to the officers' orders, they called for an additional unit to come to assist them. § 87(2)(b) swung a closed fist at PO Baez who was able to move out of the way before she hit him. § 87(2)(b) then became physically combative with PO Zimmer. Simultaneously, multiple additional units, from multiple different commands, arrived at the scene without notifying the central dispatcher and assisted PO Zimmer and PO Baez in apprehending § 87(2)(b) and § 87(2)(b). While the officers apprehended § 87(2)(b), § 87(2)(b) interfered with the arrest and was arrested himself. Throughout the apprehension, officers allegedly used force against § 87(2)(b) (Allegation A). PO Zimmer, PO Nicolosi, PO Baez and Sgt. Benintendo apprehended § 87(2)(b) and used some force against him as he was resisting arrest (Allegations B, C, D and E). Other officers might have also used force against § 87(2)(b) in the process (Allegation F). When § 87(2)(b) was apprehended, an unidentified officer punched him in the face and allegedly stomped on his back (Allegation G). Once § 87(2)(b), § 87(2)(b) and § 87(2)(b) were placed in handcuffs, they were transported to the 42nd Precinct stationhouse by PO Zimmer and PO Baez. While being walked into the stationhouse, PO Zimmer allegedly hit § 87(2)(b)'s head against the doorway to the stationhouse (Allegation H). § 87(2)(b) was then placed in the holding cells at the 42nd Precinct stationhouse where it is alleged that he asked multiple officers for medical attention but did not receive it until he went to Bronx Central Booking (Allegation I). § 87(2)(b) who was not arrested, went to the stationhouse that evening to check up on § 87(2)(b) and § 87(2)(b). While she was at the stationhouse, an officer allegedly threatened to arrest her (Allegation J).

§ 87(2)(b) was arrested and charged § 87(2)(b)
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§ 87(2)(b)

There is no video footage that captures this incident.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Mediation, Civil and Criminal Histories

- [illegible]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) (Board Review 24, Board Review 27, Board Review 26, Board Review 25)
- PO Zimmer has been a member of the service for two years. This is his first CCRB complaint.
- PO Baez has been a member of the service for two years. This is his first CCRB complaint.
- PO Nicolosi has been a member of the service for four years. He has had seven prior CCRB complaints against him, two of which have been fully investigated and none of which have been substantiated.
- Sgt. Benintendo has been a member of the service for 14 years. This is his first CCRB complaint.

Potential Issues

- There was very limited documentation available to be able to identify officers.
 - Although the original officer, PO Baez and PO Zimmer, requested an additional unit over the radio and an event was created (Board Review 37), no units are

shown as coming over the radio and responding to the scene besides 42 Park Auto, which was PO Baez and PO Zimmer. A review of radio communications revealed that a female lieutenant, identified by the investigation as Lt. Sharisse Sanders, and a male Anti-Crime sergeant, identified by the investigation as Sgt. Cesar Imbert, said that they would be responding to the scene and soon after a voice is heard saying to “slow it down” and “no further units” to the incident in Crotona Park (Board Review 23). § 87(2)(g)

- The UF-49, created by Sgt. Benintendo, does not have much detail about officers that responded to the scene (The report only mentions PO Baez, PO Zimmer, PO Nicolosi and “other responding officers”) and also incorrectly represents which officers apprehended § 87(2)(b) by stating that PO Nicolosi apprehended § 87(2)(b) with the help of other responding officers when in fact PO Nicolosi did not apprehend § 87(2)(b) (Board Review 36). Sgt. Benintendo explained that the report was created without him being able to conduct a full investigation into what occurred during the incident and explained the reason for the discrepancy in the report was because he was under time constraint pressures to complete the report but not work overtime which forced him to quickly complete the UF-49 without conducting an investigation to obtain all of the facts; therefore, he only based his report on what he thought he saw at the time of the incident while he was involved in apprehending § 87(2)(b) (Board Review 15).
- § 87(2)(g)
- The investigation interviewed all officers who were identified by other officers during their testimonies with the exception of PO Drews, who was out on extended family relations leave with no return date. § 87(2)(g)
- § 87(2)(b) has stated that her § 87(2)(b) son would be able to describe all of the officers who were apprehend § 87(2)(b) but the investigation has been unable to obtain a statement from § 87(2)(b) s son because § 87(2)(b) has not had her son contact the CCRB after she said she would, has not been able to be reached by phone since November 4, 2015, and has not responded to letters sent to her address on December 4, 2015 and January 8, 2016.

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(g)
[REDACTED]
- Force: Multiple types of force was alleged as being used on § 87(2)(b) § 87(2)(g)
[REDACTED]
- Force: Although § 87(2)(b) had confirmed injuries to his left eye from this incident, § 87(2)(g)
[REDACTED]
- Abuse of Authority: § 87(2)(b) made an allegation of a threat of arrest during a follow-up phone call and identified the subject of her complaint as a black male officer. § 87(2)(g)
[REDACTED]
[REDACTED] Because of this, the investigation attempted to have § 87(2)(b) view photographs of the possible officers who matched § 87(2)(b)'s description. However, § 87(2)(b) has been unresponsive to calls made to her and letters sent to her which have not been returned as undeliverable by the USPS. § 87(2)(g)
[REDACTED]
[REDACTED]

Allegation A – Discourtesy: At Crotona Park in the Bronx, officers used physical force against § 87(2)(b)

The sworn statements obtained by the investigation did not contain any statements of observations of actions that amounted to force with § 87(2)(b) (Board Review 01, Board Review 02, Board Review 03). § 87(2)(b) stated that § 87(2)(b) was pushed against a police car and repeatedly pushed down when she continuously lifted her body off of the car (Board Review 02). § 87(2)(b) stated that he was able to see a peak of § 87(2)(b)'s interactions with the officers when he was being apprehended and said that he saw officers pushing § 87(2)(b) towards a car while in handcuffs and that his daughter was saying “Daddy they hit me” (Board Review 03). § 87(2)(b) said that he saw three officers with § 87(2)(b) and thought that they may have thrown her to the ground (Board Review 01).

§ 87(2)(b) provided a brief phone statement to the allegation which alleged some force used by officers, however, § 87(2)(b) never provided a sworn statement to the CCRB. § 87(2)(b) was uncooperative with the investigation when she missed a scheduled appointment without calling in

advance to cancel and reschedule and never contacted the CCRB to reschedule her appointment despite a total of five calls being made and two letters being sent to her address (Board Review 38).

§ 87(2)(g)

it is recommended that
Allegation A be closed as **victim uncooperative**.

Allegation B – Force: At Crotona Park in the Bronx, Police Officer Richard Zimmer used physical force against § 87(2)(b)

Allegation C – Force: At Crotona Park in the Bronx, Police Officer John Nicolosi used physical force against § 87(2)(b)

Allegation D – Force: At Crotona Park in the Bronx, Police Officer Jonathan Baez used physical force against § 87(2)(b)

Allegation E – Force: At Crotona Park in the Bronx, Sergeant Jonathan Benintendo used physical force against § 87(2)(b)

All parties agree that force was used to apprehend § 87(2)(b). § 87(2)(b) stated that officers grabbed him and pulled him to the ground and that the officers had his hands behind his back immediately after he was brought to the ground. § 87(2)(b) felt punches to his face, ribs and head, by multiple officers when he was on the ground but could not identify any of the officers that were punching him. § 87(2)(b) told the officers “Get off me” when he felt these things and while they were in the process of handcuffing him (Board Review 03).

§ 87(2)(g)

§ 87(2)(b) stated that she saw at least five officers jump on § 87(2)(b) and bring him to the ground and that he was placed in handcuffs as soon as he was on the ground (Board Review 02). § 87(2)(b) (Board Review 01) stated that when he ran back to the park, he saw six to seven police officers surrounding § 87(2)(b) and that he observed two officers hit § 87(2)(b) in the ribs when he was standing up but that § 87(2)(b) was blocking the officers’ hits and backing away from the officers. Then § 87(2)(b) was eventually brought to the ground. When § 87(2)(b) got closer to § 87(2)(b) officers were trying to handcuff § 87(2)(b) by punching and kicking him.

§ 87(2)(g)

§ 87(2)(b). Although § 87(2)(b) and § 87(2)(b) indicated that § 87(2)(b) did not resist arrest, in her phone statement, § 87(2)(b) indicated that § 87(2)(b) was wiggling his body to try to get officers off of him when he was on the ground (Board Review 03).

PO Zimmer, PO Baez, PO Nicolosi, Sgt. Benintendo—who were all involved in the apprehension—all stated that § 87(2)(b) resisted arrest by moving his body and fighting the officers off by swinging his arms and elbows. They all stated that he was pulled down to the ground to make it easier for the officers to handcuff him since he was resistant (Board Review 06, Board Review 17, Board Review 08, Board Review 07, Board Review 15). PO Larino and PO

Flintoft stated that they witnessed § 87(2)(b) moving his body away from the officers and moving his arms away from them (Board Review 11, Board Review 10).

PO Zimmer, PO Baez, PO Nicolosi and Sgt. Benintendo all stated that once § 87(2)(b) was brought to the ground, he placed his hands underneath his body. If an arm was released from underneath his body, § 87(2)(b) would move his arm around and away from the officers and then place his arm back under his body. Sgt. Benintendo, PO Zimmer and PO Nicolosi all stated that § 87(2)(b) was also kicking the officers when he was on the ground. PO Baez reported that § 87(2)(b) was saying, “Get the fuck off me” when he was on the ground and PO Perez-Romero said § 87(2)(b) was saying that he was not going to be handcuffed or arrested when he was on the ground (Board Review 09). Lt. Sanders stated that she did not see what was happening but that she heard officers saying, “Stop resisting” (Board Review. 16).

PO Baez and Sgt. Benintendo stated that the only actions they took with § 87(2)(b) were grabbing his arms and trying to pry them out from underneath his body (Board Review 08, Board Review 15). PO Zimmer stated that he hit § 87(2)(b) once on his right side near his rib area with an open hand to overcome § 87(2)(b)'s resistance and gain compliance of his arms. PO Zimmer also stated that he heard other officers hitting § 87(2)(b) with an open fist but that he did not know who was hitting him or where on § 87(2)(b)'s body the hits he heard were hitting § 87(2)(b). PO Zimmer also pushed § 87(2)(b)'s arms down from swinging and stated that he might have accidentally hit § 87(2)(b) in the back when he was doing this but then § 87(2)(b) moved his hands away (Board Review 06, Board Review 17). PO Nicolosi stated that he hit § 87(2)(b) one time on the left side of his body with a closed fist to be able to get § 87(2)(b)'s hands from underneath his body but that he did not see any other officers hitting § 87(2)(b) (Board Review 07).

PO Zimmer was injured from § 87(2)(b)'s actions during his apprehension. LOD paperwork states that PO Zimmer was injured while trying to arrest a combative suspect and that the suspect struck PO Zimmer multiple times with his elbow in addition to injuring PO Zimmer's hand when PO Zimmer broke his fall as the perpetrator fell on top of him (Board Review 35).

An officer is permitted to use the minimum amount of force necessary to overcome resistance and take a violent or resistant individual into custody NYPD Patrol Guide Procedure 203-11.

§ 87(2)(a) PHL §18(6)

§ 87(2)(g)

§ 87(2)(g) Therefore, it is recommended that **Allegations B, C, D and E** be closed as **exonerated**.

Allegation F – Force: At Crotona Park in the Bronx, officers used physical force against

§ 87(2)(b)
In addition to the above alleged force, § 87(2)(b) also alleged that officers punched him in the head and kicked him on his face, head, back and ribs, when they were handcuffing him while he was on the ground. He also alleged that officers kicked and punched him after he was already in handcuffs but did not know which officers or how many officers were taking those actions (Board Review 03). § 87(2)(a) PHL §18(6)

§ 87(2)(b) stated that she observed one officer begin to kick and punch § 87(2)(b) on the ground but she could only explain the officer as being a white male in uniform (Board Review 02). In her phone statement, § 87(2)(b) stated that she saw officers hitting § 87(2)(b) in the head and back when he was on the ground (Board Review 05).

§ 87(2)(a) PHL §18(6)

§ 87(2)(g)

The officers that were alleged to be kicking and punching § 87(2)(b) could not be described, either at all or in detail, by any civilian on the scene. Neither PO Zimmer, PO Nicolosi, PO Baez nor Sgt. Benintendo, who were the only officers identified by the investigation as being physically involved in the apprehension of § 87(2)(b) admitted to punching § 87(2)(b) in the head, punching him after he was handcuffed or to kicking § 87(2)(b) at any point (Board Review 06, Board Review 17, Board Review 08, Board Review 07, Board Review 15). PO Perez-Romero, who witnessed the apprehension of § 87(2)(b) stated that he did not observe any officers take these actions either (Board Review 09).

PO Zimmer stated that he saw an officer in plainclothes, from another command, punch § 87(2)(b) in the head during the struggle but was unable to describe that officer. § 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation F** be closed as officers unidentified.

Allegation G – Force: At Crotona Park in the Bronx, an officer used physical force against

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) denies that he physically intervened with officers who were apprehending § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) states that when he stood by the officers who were apprehending with § 87(2)(b) he started screaming at the officers asking them what they were doing and telling them to get off of § 87(2)(b). § 87(2)(b) ran in front of one of the last police officers to arrive on the scene and officers from that car exited it and that when § 87(2)(b) turned around, a plainclothes officer punched him in his left temple and then another plainclothes officer jumped on his back causing him to fall to the ground. Once he was on the ground, a third plainclothes officer put his knee on § 87(2)(b)'s head and pushed his cheek into the ground. Then the first plainclothes officers hit him twice in the eye, once in his temple and once in his jaw. § 87(2)(b) then felt an officer stomp on his shoulder blade but was not able to see which officer did this. § 87(2)(b) sustained a black eye, chipped tooth and broken glasses from all of the officers' actions. Though he could not describe any of the officers who were using force on him, § 87(2)(b) stated that they were all in plainclothes (Board Review 01).

§ 87(2)(b) states that though she was originally mostly focused on § 87(2)(b)'s interactions with police officers, when she looked over at § 87(2)(b) she saw three or four uniformed police officers on top of § 87(2)(b) and that one officer white male officer in uniform was punching him in the face repeatedly but that no other officer around § 87(2)(b) using force on him (Board Review 02).

§ 87(2)(b) and § 87(2)(b) were not able to see the officer's interactions with § 87(2)(b) (Board review 03, Board Review 05).

PO Larino stated that after § 87(2)(b) grabbed PO Nicolosi, an officer in uniform came and tackled § 87(2)(b) to the ground and that a second uniformed officer assisted that officer with § 87(2)(b) when he was on the ground. PO Larino assisted both uniformed officers as well. § 87(2)(b) was lying on the ground with his hands and arms underneath his chest, refusing to give the officers his hands. PO Larino was on the right side of § 87(2)(b)'s body while one of

the uniformed officers was in front of him and the other uniformed officer was on the right side of § 87(2)(b)'s body. PO Larino had his knee on § 87(2)(b)'s back/shoulder area while he was pulling on § 87(2)(b)'s arms to get them behind his back. The officer on the right side of § 87(2)(b)'s body was also pulling at § 87(2)(b)'s arms to get them behind his back. PO Larino did not see any officer punch § 87(2)(b) in the face at any point and did not punch § 87(2)(b) in the face himself. PO Larino also denied stomping on § 87(2)(b)'s shoulder blade. PO Larino only remembered himself and the two unidentified uniformed officers, who were not from the 42nd Precinct, becoming physically involved with § 87(2)(b) (Board Review 01).

PO Nicolosi stated that he did not know what his partner, PO Larino, did when they arrived on the scene. When § 87(2)(b) grabbed his bicep on the side of his body that he carries his firearm on, PO Nicolosi turned around and pushed him with his open palms in his torso. PO Nicolosi did not punch § 87(2)(b) in the eye. Then other male officers in uniform from a different command, who PO Nicolosi could not describe, grabbed § 87(2)(b) after which PO Nicolosi turned back around and continued to try to apprehend § 87(2)(b) (Board Review 07).

Although the UF-49 (Board Review 36), prepared by Sgt. Benintendo, states that PO Nicolosi became physically involved in apprehending § 87(2)(b) after § 87(2)(b) grabbed him, Sgt. Benintendo stated he completed this report in a rush before he was able to ask PO Nicolosi what happened because he was not able to work any over time. After Sgt. Benintendo completed the report, he thought the incident over again and asked PO Nicolosi what happened and realized that PO Nicolosi only shoved § 87(2)(b)'s chest back with both of his hands after § 87(2)(b) grabbed his arm. Sgt. Benintendo then saw another male in plainclothes (Sgt. Benintendo was not sure who it was) run up to § 87(2)(b) and bring him somewhere to the side where Sgt. Benintendo no longer looked at what was happening because he was focused on his own interaction with § 87(2)(b) (Board Review 15).

PO Perez-Romero stated that he observed § 87(2)(b) grab PO Nicolosi and then saw PO Larino grab § 87(2)(b) while another officer wearing a uniform came to assist PO Larino bring § 87(2)(b) to the ground and that eventually other uniformed officers came to assist PO Larino and the other officer in apprehending § 87(2)(b) (Board Review 09).

Sgt. Imbert stated that he observed PO Larino and PO Nicolosi interacting with a male on the ground but he could not identify if this male was § 87(2)(b) or § 87(2)(b). Nonetheless he did not see either PO Larino or PO Nicolosi punching this male (Board Review 18).

PO Zimmer, PO Baez, PO Flintoft, Sgt. Mercado and Lt. Sanders did not see § 87(2)(b)'s apprehension (Board Review 06, Board Review 08, Board Review 10, Board Review 14, Board Review 16).

§ 87(2)(b) was brought to the hospital from the stationhouse because his eye began to swell. § 87(2)(b) told EMS workers that he was punched during an altercation with NYPD officers. § 87(2)(b) had abrasions to his face and swelling to his forehead, left eye and left cheek area. At the hospital, § 87(2)(b)'s chief complaint was that he was punched in the eye by the police

(Board Review 13). § 87(2)(b) s arrest photograph shows swelling to his left eye (Board Review 32).

§ 87(2)(g)

Therefore, it is recommended that **Allegation G** be closed as **officer(s) unidentified**.

Allegation H – Force: At the 42nd Precinct stationhouse, Police Officer Richard Zimmer hit § 87(2)(b) against a wall.

§ 87(2)(b) alleged that he was being walked into the stationhouse by four to six officers and that as he was being walked into the stationhouse PO Zimmer banged his head against the doorway leading into the stationhouse and told him to shut up. This action caused the right side of his forehead to hit against the doorway and causing him to feel dizzy (Board Review 06).

PO Zimmer stated that he was the only officer who brought § 87(2)(b) into the stationhouse and that no other officers were around. § 87(2)(b) was being combative with PO Zimmer and pushed his body and head backwards on the steps to the stationhouse, putting PO Zimmer in danger of falling down the steps. In order to maintain prisoner control, PO Zimmer pushed § 87(2)(b) s body against the wall and held him against the wall while telling him not to try to run or head butt him. He also told § 87(2)(b) that he was already under arrest and was going to be going into the stationhouse to be processed. PO Zimmer denied banging § 87(2)(b) s head into the wall and stated that he only pushed his body to the wall in order to maintain prisoner control (Board Review 06).

§ 87(2)(a) PHL §18(6)

§ 87(2)(g)

Therefore, it is recommended that **Allegation H** be closed as **unsubstantiated**.

Allegation I – Abuse of Authority: At the 42nd Precinct stationhouse, officers did not obtain medical treatment for § 87(2)(b)

Squad: _____

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date